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Subject: GTT Communications, Inc. et al., FCC File Nos. ITC-ASG-20211115-00168, ITC-ASG-20211115-00169, WC Docket No. 21-445 (TT 21-080 to -082), Joint Application for Consent to Assign and Transfer Control of Domestic and International Section 214 Authorizations Pursuant to Section 214 of the Communications Act of 1934, as Amended, and 47 C.F.R. §§ 63.04, 63.18, and 63.24

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that GTT Communications, Inc. (“GTT”); GTT Americas, LLC (“GTT Americas”); and GC Pivotal, LLC (“GC Pivotal”) (collectively, the “GTT Companies”) make to the U.S. Department of Justice (“USDOJ”), including the Federal Bureau of Investigation (“FBI”), U.S. Department of Defense (“DoD”), and U.S. Department of Homeland Security (“DHS”) (collectively, the “Compliance Monitoring Agencies” or “CMAs”) to address national security and law enforcement risks arising from the above-referenced applications to the Federal Communications Commission

(“FCC”).¹ In the applications, the GTT Companies seek consent pursuant to Section 214 of the Communications Act of 1934, as Amended, and 47 C.F.R. §§ 63.04, 63.18, and 63.24 to: (1) assign the Section 214 authorizations that GTT Americas and GC Pivotal hold as debtors-in-possession to reorganized GTT Americas and reorganized GC Pivotal, and (2) transfer control of GTT, as debtor-in-possession, from its existing stockholders to new equity holders of reorganized GTT upon emergence from chapter 11 bankruptcy pursuant to GTT’s confirmed chapter 11 reorganization plan. GTT Americas holds an international Section 214 authorization² and a domestic Section 214 authorization. GC Pivotal holds two international Section 214 authorizations³ as well as a domestic Section 214 authorization.

The GTT Companies certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to USDOJ, including the FBI, DoD, DHS, and the FCC in the course of the review of the above-referenced applications that was conducted pursuant to Executive Order 13913,⁴ and the GTT Companies hereby adopt those statements as the basis for this LOA.

Further, as to the GTT Companies, this LOA supersedes in their entirety (a) the Letter of Assurances from Hibernia Group ehf, for itself and its subsidiaries Hibernia Atlantic U.S. LLC, Hibernia Atlantic Communications (Canada) Company, Hibernia Atlantic (UK) Limited, Hibernia Atlantic Cable System Limited, Hibernia International Assets Inc. (f/k/a CVC Acquisition (CI) Corporation), and Hibernia Media, LLC, to DHS, USDOJ, and DoD, dated September 30, 2010, and effective October 25, 2010;⁵ (b) the Letter of Assurances from KCK Limited, Hibernia NGS Limited, Hibernia Atlantic U.S. LLC, and Hibernia Media, LLC, to DHS, USDOJ, and DoD, dated and effective December 15, 2014;⁶ and (c) the GTT Communications, Inc. Letter of Commitment to Assume Party Status in Hibernia Atlantic U.S. LLC Letters of Assurance, as Amended, dated January 4, 2017.⁷

¹ *In the Matter of GTT Communications, Inc. et al.*, Joint Application for Consent to Assign and Transfer Control of Domestic and International Authorizations Pursuant to Section 214 of the Communications Act of 1934, as Amended, and Sections 63.04, 63.18, and 63.24 of the Commission’s Rules, FCC File Nos. ITC-ASG-20211115-00168, ITC-ASG-20211115-00169, WC Docket No. 21-445 (Nov. 15, 2021).

² FCC File No. ITC-214-20020619-00332.

³ FCC File Nos. ITC-214-20061101-00500 and ITC-214-20110201-00049.

⁴ 85 Fed. Reg. 19643 (Apr. 8, 2020). Specifically, those statements consist of the written responses provided by the GTT Companies as certified by Douglass Maynard, General Counsel of GTT Communications: Responses to the Initial Triage questions dated January 24, 2022; Responses to Round 1 Follow-up Questions dated February 19, 2022; Responses to Round 2 Follow-up Questions dated March 15, 2022 (associated highly confidential PII exhibit submitted March 14, 2022); Update to Responses to Initial Triage Questions dated April 1, 2022 (associated highly confidential PII exhibit submitted April 6, 2022); Summary of Levels of Employee Access to GTT’s U.S. Network and U.S. Customer Data, dated April 12, 2022 (associated highly confidential PII exhibit submitted April 13, 2022); Responses to Round 3 Follow-up Questions dated May 25, 2022; and Responses to Round 4 Follow-up Questions dated June 10, 2022.

⁵ See FCC File Nos. ITC-214-20100303-00093 and ITC-214-20090612-00283.

⁶ See FCC File Nos. ITC-T/C-20140820-00242; ITC-T/C-20140820-00244; and SCL-T/C-20140820-00007.

⁷ See FCC File No. ITC-T/C-20161110-00295.

Definitions

1. For purposes of this LOA, the following definitions apply:
 - a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (“IT”) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.
 - b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
 - c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).
 - d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.
 - e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC Applications.
 - f. “Domestic Communications” (“DC”) means:
 - (i) Wire Communications or Electronic Communications (whether stored or not), as defined by 18 U.S.C. § 2510, from one location within the United States, including its territories, to another location within the United States; or
 - (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.
 - g. “Domestic Communications Infrastructure” (“DCI”) means any system of the GTT Companies that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft

Office) used by, or on behalf of, the GTT Companies to provide, process, direct, control, supervise, or manage DC, but would not include the systems of entities for which the GTT Companies have a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network Access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4), and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 et seq.;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 et seq. and 50 U.S.C. § 1841 et seq.;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Geolocation Data” means any information the GTT Companies collect from their customers regarding a customer’s location or the customer’s device location.

k. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau, or political subdivision, and any court, tribunal, or judicial or arbitral body.

l. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

m. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates, or authorizations, and other orders, legal process, statutory authorizations, and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

n. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation, and implementation of modifications or upgrades; or
- (ii) provision of DC or operation of DCI, including: customer support; OSS; BSS; Network Operations Centers (“NOCs”); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and data center services and operations.

o. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

p. “Offshore” means performing obligations of this LOA using entities and personnel outside of the territorial limits of the United States, whether or not those entities or personnel are the GTT Companies’ employees.

q. “Outsource” means, with respect to DC, supporting the services and operational needs of the GTT Companies at issue in this LOA using contractors or third parties.

r. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including his or her name, social security number, or biometric records, or when combined with other personal or identifying information that

is linked or linkable to a specific individual, including date and place of birth, or parent's surname.

s. "Principal Equipment" means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

t. "Security" means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization's risk management approach.

u. "Security Incident" means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the GTT Companies' computer network(s) or associated information systems:
 - A. Unauthorized distributed denial of a service to the core GTT network (and excludes ordinary individual customer service outages which are not authorized);
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of the GTT Companies' Cybersecurity Incident Response Plan(s);
 - E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the GTT Companies' ability to comply with the terms of this LOA; or

F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. “Sensitive Personal Data” means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

x. “U.S. Records” means the GTT Companies’ customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services that the GTT Companies offer within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c)-(d) and 18 U.S.C. § 2709.

Personnel

2. The GTT Companies agree to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by the CMAs, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless the CMAs otherwise agree in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. The GTT Companies agree to provide the LEPOC’s PII to the CMAs within **15 days** of the Date of FCC Approval. The CMAs will object or non-object within **15 days** from receiving the LEPOC’s PII.

4. The GTT Companies agree to notify the CMAs, including the FBI, in writing at least **30 days** prior to modifying their LEPOC for CMA and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within **five (5) days** of such event. Under these circumstances, the CMAs and FBI will object or non-object to the replacement LEPOC within **30 days** of notification.

5. The GTT Companies agree that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than **five (5) days** after receiving such Lawful U.S. Process unless the CMAs grant an extension.

6. The GTT Companies agree to implement, either directly or through a vendor, a process to screen existing or newly hired personnel who have Access to DC, DCI, or U.S. Records (*e.g.*, personnel of the GTT Companies or personnel of an Outsourced or Offshored service provider performing under an agreement with the GTT Companies). To satisfy their obligations with respect to the employees of an approved Outsourced or Offshored service provider that have Access to DC, DCI, or U.S. Records, the GTT Companies will seek to contractually commit such third parties to comply with the personnel screening process in this paragraph. If a third-party service provider fails to agree to such a commitment, GTT shall notify the CMAs within **14 days** of the termination of the relevant negotiations. The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. The GTT Companies further agree to provide the CMAs with a written description of this personnel-screening process no later than **60 days** after the Date of FCC Approval. The CMAs will object or non-object **within 60 days** of receiving such description.

7. The GTT Companies agree to notify the CMAs of all Foreign persons (*e.g.*, Foreign employees, Foreign employees of GTT's Foreign subsidiaries, and Foreign employees of approved Outsourced or Offshored service providers) that they intend to allow Access to U.S. Records, DC, or DCI. The GTT Companies agree to make such notification no less than **20 days** prior to the date by which they are seeking such Access be granted; or, with respect to any Foreign persons with such Access as of the Date of FCC Approval, within **30 days** of the Date of FCC Approval. The GTT Companies further agree to provide PII to the CMAs for each Foreign person so identified at the time of, and with, the foregoing notification. The CMAs will object or non-object within **20 days** of receiving notice.

Security Officer

8. The GTT Companies agree to designate and maintain a security officer ("Security Officer") who is a non-dual United States citizen residing in the United States and may also designate and maintain an alternate security officer ("Alternate Security Officer") to fulfill the responsibilities of the Security Officer in the event of his or her unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a "Secret" level or higher U.S. Government security clearance immediately upon appointment. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by the CMAs. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within the GTT Companies to perform his/her duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA and to act as a liaison to the CMAs regarding compliance with this LOA and to address any national security or law enforcement issues arising during the GTT Companies' due course of business. The GTT Companies will provide the Security Officer and any Alternate Security Officer with Access to the GTT Companies' business information that is necessary for the Security Officer and any Alternate Security Officer to perform his/her duties.

9. The Security Officer will be available 24 hours per day, seven days per week, to respond to and address any national security or law enforcement concerns that the CMAs may raise with respect to the GTT Companies or their operations, except that if the GTT Companies designate an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon CMA request, the Security Officer or, as applicable, Alternate Security Officer, will make himself/herself available in person within the United States or its territories, or, if the GTT Companies request and the CMAs agree, by videoconference, within 72 hours, at a date and location, including in a classified setting, or by videoconference, as deemed necessary by the CMAs.

10. The GTT Companies agree to nominate a proposed candidate for Security Officer to the CMAs within **15 days** of the Date of FCC Approval, and thereafter will provide at least **10 days'** notice of a Security Officer's departure, and **30 days'** prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation must be provided within **five (5) days** of such event). The GTT Companies further agree to not maintain a vacancy or suspension of the Security Officer position for a period of more than **60 days**. In the event that the GTT Companies designate an Alternate Security Officer, the GTT Companies will nominate a proposed candidate for Alternate Security Officer at least **30 days** prior to the date on which the GTT Companies propose to designate an Alternate Security Officer. The GTT Companies agree to provide the proposed Security Officer's (and any Alternate Security Officer's) PII with the nomination. All Security Officer nominations and any Alternate Security Officer nominations will be subject to CMA review and non-objection and may be subject to a background check at the sole discretion of the CMAs. The CMAs will object or non-object to the proposed Security Officer or Alternate Security Officer, if applicable, within **30 days** of notification. The GTT Companies agree to address concerns raised by the CMAs regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Lawful U.S. Process and Requests for Information

11. The GTT Companies agree to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. The GTT Companies further agree to certify to the CMAs their compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-10, and its implementing regulations, within **30 days** from the Date of FCC Approval.

12. The GTT Companies agree to provide notice of any material modification to their lawful intercept capabilities to the CMAs within **30 days** of such modification and will re-certify their compliance with CALEA no more than **60 days** following their notice to the CMAs of any material new facilities, services, or capabilities.

13. Upon receipt of any Lawful U.S. Process, the GTT Companies agree to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

14. The GTT Companies agree not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or Foreign person (other than those Foreign persons that are: (1) screened consistent with Paragraph 7 of this LOA; or (2) employed by an Outsourced or Offshored service provider approved pursuant to Paragraphs 33-34 of this LOA), without prior written consent of the CMAs, or a court of competent jurisdiction in the United States.

15. The GTT Companies agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of the CMAs, or a court of competent jurisdiction in the United States.

16. The GTT Companies agree to refer any requests for information or Access described in Paragraphs 14 or 15 from a Foreign person (other than those Foreign persons that are: (1) screened consistent with Paragraph 7 of this LOA; or (2) employed by an Outsourced or Offshored service provider approved pursuant to Paragraphs 33-34 of this LOA), Foreign entity, or Foreign Government, including any legal process from a Foreign Government, to the CMAs as soon as possible, but in no event later than **five (5) days** after such a request, or legal process, is received by, or made known to, the GTT Companies, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

17. The GTT Companies agree not to comply with such requests from Foreign Governments, Foreign entities, and Foreign persons without prior written consent of the CMAs, or an order of a court of competent jurisdiction in the United States except as set forth within Paragraph 14.

18. The GTT Companies agree to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Unauthorized Access and Security Incidents

19. The GTT Companies agree to take appropriate measures to prevent unauthorized Access to U.S. Records, DC, and the DCI.

20. The GTT Companies agree to take appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records or DC.

21. The GTT Companies agree to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (“NIST”) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. The GTT Companies will provide copies of those Plans to the CMAs within **60 days** of the Date of FCC Approval for objection or non-objection. Furthermore, the GTT Companies agree that the Plans will be updated when appropriate to conform with evolving information security standards, and that the GTT Companies will make and implement additional modifications to these Plans to address concerns raised by the CMAs. The CMAs will object or non-object within **60 days** of receiving each version of the Plans.

22. The GTT Companies agree that the Plans will include, among other things, policies relating to their information security, supply chain security, cybersecurity incident response, remote Access, physical security, cybersecurity, third-party contractors, peering and routing security, Outsourcing and Offshoring, maintenance and retention of system logs, periodic control assessments, protection of Lawful U.S. Process, protection of U.S. Records and DC that the GTT Companies obtain in the ordinary course of business, and the GTT Companies’ plans regarding new contracts or amendments to existing contracts with third-party service providers requiring those third parties to: a) notify the GTT Companies when required under Paragraphs 26 and 27, and b) screen personnel as required under Paragraph 6.

23. The GTT Companies agree to take timely and appropriate remedial measures, as recommended by the U.S.-Computer Emergency Readiness Team/Cybersecurity and Infrastructure Security Agency (“U.S.-CERT”/“CISA”), an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

24. The GTT Companies agree to notify the CMAs at least **30 days** prior to changing the location for storage of U.S. Records or DC. The CMAs will object or non-object within **30 days** of receipt of the GTT Companies’ submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is the GTT Companies);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Reporting Incidents and Breaches

25. The GTT Companies agree to report to the CMAs promptly, and in any event no later than **72 hours**, after they learn of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by the GTT Companies, or referring or relating in any way to the GTT Companies' customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

26. The GTT Companies agree to seek to require any third-party service provider to disclose to the GTT Companies any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach or other cause, within **72 hours** of the third party discovering the breach or loss. The GTT Companies agree further to seek to require any third-party service provider to disclose to the GTT Companies, within **72 hours** of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services that the third party provides to the GTT Companies that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the third-party providers' supply chain. If a third-party service provider fails to agree to disclose such a breach, GTT shall notify the CMAs within **14 days** of the termination of the relevant negotiations.

27. The GTT Companies agree to notify the CMAs, including the points of contact ("POCs") listed in this LOA, in writing of any Security Incident or breach described in this LOA. Such notification shall take place no later than **72 hours** after the GTT Companies have knowledge of, or are informed by a third party providing Outsourced or Offshored services to the GTT Companies, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations.

28. The GTT Companies agree to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within **seven (7) business days** after reasonable determination that a person without authorization, or in exceeding his or her authorization, has gained Access to, used, or disclosed CPNI, whether through the GTT Companies' network or that of a third party used by the GTT Companies, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>.

Principal Equipment

29. The GTT Companies agree to provide the CMAs a Principal Equipment list within **30 days** of the Date of FCC Approval. The CMAs will object or non-object to the Principal Equipment list within **60 days** of receipt. The Principal Equipment list shall include the following:

- a. A complete and current list of all Principal Equipment, including:
 - (i) a description of each item and the functions supported,
 - (ii) each item's manufacturer, and
 - (iii) the model and/or version number of any hardware or software.
- b. The name, address, phone number, and website for any vendors, contractors, or subcontractors involved in providing, installing, operating, managing, repairing, or maintaining the Principal Equipment.

30. The GTT Companies agree to notify the CMAs in writing at least **30 days** prior to introducing any new Principal Equipment of a different make or model than the Principal Equipment identified and approved pursuant to Paragraph 29, or subsequently approved by the CMAs pursuant to this paragraph, or modifying any of their Principal Equipment. The CMAs will object or non-object to such new Principal Equipment or modification to the Principal Equipment within **30 days** of receipt of notice. In an emergency situation, the GTT Companies may, without prior notice, replace existing Principal Equipment with equipment produced by the same manufacturer (who has previously been disclosed to the CMAs and cleared without objection pursuant to the procedures in Paragraph 29 of this agreement), as long as the CMAs are notified of the new equipment as soon as practicable and in no event later than 48 hours after replacement.

31. The GTT Companies agree to provide the CMAs in writing with the name, address, phone number, and website of any providers, suppliers, and entities that will perform any maintenance, repair, or replacement that may result in introduction of new Principal Equipment or modification of Principal Equipment or systems or software used with or supporting the Principal Equipment. The CMAs will object or non-object to the nominated providers, suppliers, and entities the GTT Companies selected within **30 days** of receipt of notice. In addition, the GTT Companies agree to provide at least **15 days'** advance notice prior to changing the service offerings or support from a previously-identified vendor, provider, supplier, contractor, or subcontractor (*i.e.*, where a previously-identified provider will be offering support in a previously unidentified way). The CMAs will object or non-object to the proposed change in service offerings or support within **15 days** of receipt of notice.

32. The GTT Companies agree to provide the CMAs with updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within **60 days** from the Date of FCC Approval.

Outsourced and Offshored Services

33. The GTT Companies agree to provide the CMAs within **30 days** of the Date of FCC Approval a list of all Outsourced or Offshored service providers that provide services to the GTT Companies (even if the contracting party is one of GTT’s Foreign subsidiaries). The CMAs will object or non-object to the Outsourced and Offshored service provider list within **60 days** of receiving it. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);
- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose the DCI, DC, or U.S. Records; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities, including those that are owned, managed, manufactured, or controlled by a Foreign Government.

The GTT Companies further agree to provide the name, address, phone number, website, and description of services provided for each Outsourced or Offshored provider included on the list submitted to the CMAs pursuant to this paragraph.

34. The GTT Companies agree to notify the CMAs in writing no less than **30 days** prior to the use of any new Outsourced or Offshored service providers that will provide any of the services described in Paragraph 33. The GTT Companies agree that such notification shall include all of the identifying information contained in Paragraph 33 for the new Outsourced or Offshored service provider. The CMAs will object or non-object to any new Outsourced or Offshored service providers within **30 days** of receiving notice.

Network Operations Centers

35. The GTT Companies agree to notify the CMAs in writing at least **60 days** prior to changing the location of their NOC(s). The CMAs will object or non-object to any new NOC

location within **60 days** of receiving notice of the proposed location change. The GTT Companies will provide the address, owner (even if the GTT Companies), Principal Equipment, and MNSP(s) (as well as any new Outsourced or Offshored service providers) of the new NOC(s) with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

36. If the GTT Companies learn of any information that reasonably indicates that there are changes to the GTT Companies' business(es), including but not limited to corporate structure changes, ultimate beneficial ownership,⁸ corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes, the GTT Companies will provide notice to the CMAs in writing no less than **30 days** in advance of such change. In the event that the GTT Companies do not learn of information that reasonably indicates an ultimate beneficial ownership change, or other relevant change, sufficiently in advance to allow them to give 30 days' advance notice, they will provide notification of such ultimate beneficial ownership change, or other relevant change, within **30 days** of obtaining such information regarding such a change. The GTT Companies also agree to provide the CMAs notice within **30 days** of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of the GTT Companies' debts.

37. The GTT Companies agree to provide the CMAs notice of any material change to their current portfolio of service offerings, including offering other services beyond their current service portfolio, no less than **30 days** in advance of such change. The CMAs will object or non-object to any proposed new services within **30 days** of receiving such notice.

38. The GTT Companies agree to provide the CMAs with lists of their existing private and public peering partners and interconnecting carriers within **six (6) months** of the Date of FCC Approval. The GTT Companies agree to provide the CMAs with additional, updated lists of their private and public peering partners and interconnecting carriers within **30 days** upon CMA request.

Third-Party Compliance Audit

39. At their sole discretion, but no more frequently than once every calendar year unless the original audit is found by the CMAs to have been unsatisfactory, the CMAs may

⁸ An ultimate beneficial ownership change occurs when a new non-U.S. individual or entity acquires a direct or indirect equity interest in the GTT Companies of five percent or more. With respect to any calendar month during which the GTT Companies provide notice under Paragraph 36 after learning of information that reasonably indicates that there will be or has been an ultimate beneficial ownership change, the GTT Companies shall provide the CMAs with an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in the GTT Companies no later than the end of the calendar month following such notice.

request the GTT Companies undergo a neutral third-party compliance audit of LOA compliance (including any plan, policy, or procedure approved under this LOA). In connection with the audit:

- a. Within **60 days** of the CMAs requesting a third-party audit, the GTT Companies will nominate a third-party auditor, subject to CMA approval. Within **60 days** of the nomination, the CMAs will approve or disapprove the nominated third-party auditor. As part of the auditor nomination and approval process, the GTT Companies will disclose information regarding the GTT Companies' and nominated auditor's pre-existing relationship (if any).
- b. The GTT Companies will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section. The CMAs will consider avoidance of unreasonable costs as a factor when exercising their rights under this Section.
- c. The GTT Companies will ensure the selected third-party auditor submits, within **15 days** of CMA non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of work for the audit, both of which will be subject to CMA approval. The statement of work shall allow for direct communication between the CMAs and the third-party auditor, without notice to or participation of the GTT Companies.
- d. The GTT Companies will ensure that the executed engagement agreement with the third-party auditor is provided to the CMAs within **five (5) days** of execution.
- e. The third-party auditor will promptly deliver to the CMAs and the GTT Companies all reports and related information generated or gathered during its review that relate directly to the GTT Companies' compliance with the terms of this LOA and will agree to meet independently with the CMAs upon request. Such meeting will occur over video conference whenever possible. Unless otherwise agreed to by the CMAs, the Compliance Audit report shall be submitted to the CMAs by the auditor at the same time it is submitted to the GTT Companies.

Annual Report

40. The GTT Companies agree to provide an annual report to the CMAs regarding their compliance with this LOA, to include:

- a. If the GTT Companies submitted no notifications to the CMAs pursuant to this LOA during the preceding year, a certification that there were no developments that the GTT Companies were required to report under the LOA during the year;

- b. A description of the GTT Companies' handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein), including a list of Foreign persons with Access to U.S. Records, DC, and DCI;
- c. Updated Principal Equipment and Offshored and Outsourced Service Provider Lists;
- d. Notice if the GTT Companies have used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their DCI, systems, or other products/services that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Secretary of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- e. Notice if the GTT Companies have used in the past year, or plan to use in the future, products or services from an entity listed on the FCC's Covered List (*see* FCC, *List of Equipment and Services Covered by Section 2 of the Secure Networks Act*, <https://www.fcc.gov/supplychain/coveredlist>),⁹ the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S.C. § 1321 et seq.;
- f. A list of any relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- g. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- h. Updated SSP and Cybersecurity Plans;
- i. An updated organizational chart showing all owners with a five percent or greater ownership share;
- j. Report(s) of any Security Incidents;
- k. A re-identification of any location(s) in which the GTT Companies store U.S. Records and the types of U.S. Records collected and stored;
- l. A re-identification of the name and contact information of the LEPOC, Security Officer, and Alternate Security Officer, if applicable;

⁹ *See also* Section 2(a) of the Secure and Trusted Communications Networks Act of 2019, Pub. L. No. 116-124, 133 Stat. 158 (2020) (codified as amended at 47 U.S.C. §§ 1601-09); 47 C.F.R. § 1.50000 et seq.

- m. A list of all compliance filings or notices or applications for authorization submitted to the FCC in the prior year, and a copy of these filings if requested by the CMAs;
- n. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- o. A description of the services that the GTT Companies provide in the United States to include: the specific services provided using an FCC license or authorization and other services they provide in the United States that do not require FCC licenses or authorizations. Such a description should also specifically detail any services provided to Government or critical infrastructure customers; and
- p. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter on or before the anniversary of the Date of FCC Approval. The GTT Companies agree to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that the CMAs identify to the GTT Companies in the future:

- Megan Fluckiger, USDOJ (at Megan.K.Fluckiger@usdoj.gov); Laura Wallace, USDOJ (at Laura.Wallace@usdoj.gov); Makenzie Briglia, USDOJ (at Makenzie.Briglia@usdoj.gov); and Eric Johnson, USDOJ (at Compliance.Telecom@usdoj.gov).
- Melissa Figueroa, DHS (at Melissa.figueroa@associates.hq.dhs.gov) and Alton Turner, DHS (at compliance@hq.dhs.gov).
- DoD (at osd.pentagon.ousd-a-s.list.team-telecom@mail.mil).

Upon CMA request, the GTT Companies agree to provide the CMAs with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

41. The GTT Companies agree to permit the CMAs' requests for site visits and information, approve all requests to conduct on-site interviews of the GTT Companies' employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA. Site visits and interviews may be done through video conference if mutually agreed to by the GTT Companies

and the CMAs. Unless due to exigent circumstances, site visits and interviews will take place during normal business hours of the GTT Companies. The CMAs agree to provide the GTT Companies with reasonable notice prior to making requests under this paragraph.

General Provisions

42. If the CMAs find that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, the GTT Companies agree to resolve the CMAs' concerns, according deference to the CMAs' views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to the GTT Companies or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

43. The GTT Companies agree that in the event that the GTT Companies breach the commitments set forth in this LOA, to include conduct contrary to timely CMA objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to the GTT Companies or their successors-in-interest, in addition to pursuing any other remedy available by law or equity.

44. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

45. The GTT Companies agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

46. The GTT Companies understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the applications.

For GTT Communications, Inc.

Don MacNeil

Don MacNeil, Chief Operating Officer
GTT Communications, Inc.
July 12, 2022

For GTT Americas, LLC

Don MacNeil

Don MacNeil, Vice President and Chief Operating Officer
GTT Americas, LLC
July 12, 2022

For GC Pivotal, LLC

Don MacNeil

Don MacNeil, Vice President and Chief Operating Officer
GC Pivotal, LLC
July 12, 2022